

7.	<i>Interinsurance Exchange Of the Automobile Club vs. Tyler</i> 2026-01565527	Before the court is a motion by petitioner Interinsurance Exchange of the Automobile Club (Petitioner) to compel responses to form interrogatories, set one, from respondent Patricia Tyler (Respondent). For the reasons set forth below, the motion is DENIED. This motion is brought as a motion to compel initial responses to form interrogatories pursuant to Code of Civil Procedure section 2030.290; not a motion to compel further responses pursuant to Code of Civil Procedure section 2030.300. Petitioner contends it propounded written discovery, including form interrogatories, on Respondent on November 6, 2025. Petitioner granted multiple extensions to respond, with the final extension until March 31, 2026. Petitioner contends Respondent served unverified responses consisting solely of objections and no substantive information. (Nomani Decl., ¶ 8 and Ex. G.) Petitioner asserts it sent a meet and confer letter to Respondent's counsel regarding the deficient responses and "despite acknowledgment and opportunities to cure, [Respondent] once again served unverified responses on May 26, 2026." (Nomani Decl., ¶ 10.) Although the declaration of Petitioner's counsel states the May 26, 2026 responses are attached to the motion as Exhibit K, there is no Exhibit K attached. Petitioner makes no argument any particular response is deficient. Petitioner also references Respondent's "failure to provide any substantive responses." (Nomani Decl., ¶ 11.) It thus appears Respondent twice served unverified objection-only responses. It also appears from Petitioner's declaration and the attached correspondence that the responses were timely based on the multiple extensions granted by Petitioner. Therefore, no verifications were needed and no objections were waived. (See <i>Golf & Tennis Pro Shop, Inc. v. Superior Court</i> (2022) 84 Cal.App.5th 127, 135 [response that contains nothing but objections need not be verified under oath]; see also, <i>Food 4 Less Supermarkets, Inc. v. Sup.Ct. (Fletcher)</i> (1995) 40 Cal.App.4th 651, 657-658.) Although case law also holds unverified responses are the equivalent of no response at all, the rule does not apply when the responses served are nothing but objections because objections need not be verified. To the extent Petitioner contends the objections lack merit and verified substantive responses should be provided, Petitioner should have filed a motion to compel further responses with the required separate statement so the court could evaluate the objections. As no motion to
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		compel further responses and no separate statement was filed, the court is unable to evaluate the objections. The motion pursuant to Code of Civil Procedure section 2030.290 therefore is DENIED. Counsel for Petitioner is ordered to give notice.
8.	<i>In Re:</i> <i>Intelifund, LLC</i> <i>2026-01572926</i>	Before the court is a petition by petitioner Intelifund, LLC (Petitioner) in which it seeks an order approving the transfer of structured settlement payment rights by and between payee and real party in interest Marquez Balingit (Payee) and Petitioner pursuant to California Insurance Code section 10134 et seq. For the reasons set forth herein, the petition is DENIED WITHOUT PREJUDICE. Petitioner seeks approval of an agreement for Payee to transfer his right to receive a single lump sum payment of \$140,000 on April 30, 2028, in exchange for a current lump sum payment of \$100,374.22. The payment right Payee agrees to transfer has a discounted present value of \$126,710.76. Accordingly, Payee would receive 79.21 percent of the discounted present value and the transaction would have an equivalent interest rate of 18.11 percent. Unfortunately, there are a number of deficiencies with the current petition that require it to be denied without prejudice to a new petition. There is no annuity contract, qualified assignment and release, or settlement agreement attached to the petition. Insurance Code section 10139.5(f)(1)(E)-(G) require these documents to be attached to the petition. Section 10139.5(f)(1)(H) provides an exception as follows: "If a copy of a document described in subparagraph (E), (F), or (G) is unavailable or cannot be located, then the transferee is not required to attach a copy of that document to the petition or notice of the proposed transfer if the transferee satisfies the court that reasonable efforts to locate and secure a copy of the document have been made, including making inquiry with the payee. If the documents are available, but contain a confidentiality or non-disclosure provision, then the transferee shall summarize in the petition the payments due and owing to the payee, and, if requested by the court, shall provide copies of the documents to the court at a scheduled hearing." Here, the documents are not provided and a sufficient showing to justify that failure is not provided either. Further, although Petitioner states "A copy of the annuity contract, qualified assignment and release, and settlement agreement is attached to this Petition as Exhibit 7" (Petition